

plaintiff's *possessory interest* in a specific, identifiable sum”; “the simple failure to pay money owed does not constitute conversion.” (*Kim v. Westmoore Partners, Inc.* (2011) 201 Cal.App.4th 267, 284 [133 Cal. Rptr. 3d 774].) Were it otherwise, the tort of conversion would swallow the significant category of contract claims that are based on the failure to satisfy “‘mere contractual right[s] of payment.’” (*Sanowicz v. Bacal* (2015) 234 Cal.App.4th 1027, 1041 [184 Cal. Rptr. 3d 517] (*Sanowicz*); see *Imperial Valley L. Co. v. Globe G. & M. Co.* (1921) 187 Cal. 352, 353–354 [202 P. 129].) Contractual provisions may, of course, determine whether the plaintiff has a possessory right to certain funds in the defendant's hands. (See, e.g., *Fischer v. Machado* (1996) 50 Cal.App.4th 1069, 1072–1074 [58 Cal. Rptr. 2d 213] (*Fischer*) [agency agreement established principal sellers' legal entitlement to converted commissions].) But to put the matter simply, a “plaintiff has no claim for conversion merely because the defendant has a bank account and owes the plaintiff money.” (3 Dobbs et al., *Law of Torts* (2d ed. 2011) § 711, p. 807.)

Voris v. Lampert (2019) 7 Cal. 5th 1141, 1150-1152.

The evidence presented by Plaintiff is a simple failure to pay money owed and does not constitute a cause of action for conversion. Plaintiff has not met its burden as to the Sixth Cause of Action.

Summary adjudication is **GRANTED** in favor of Plaintiff as to the First and Third Causes of Action. Summary adjudication is **DENIED** as to the Fourth and Sixth Causes of Action. The Sabet Defendants are not parties to the Second Cause of Action. Plaintiff did not seek summary adjudication as to the Fifth Cause of action, which names the Sabet Defendants.

While Plaintiff seeks a judgment that includes principal, interest, attorney fees and costs, a judgment will not issue because the Fourth, Fifth and Sixth Causes of Action remain against the Sabet Defendants. Additionally, the Court notes that under Costs and Expenses on page six in the Business Loan Agreement, Defendants are to pay “all reasonable out-of-pocket expenses incurred by the Lender” for enforcement of the agreement. However, Plaintiff has not filed a noticed motion for attorney fees and has not provided any evidence of attorney fees incurred other than a total dollar amount. A Motion for Attorney Fees will be needed in order for the Court to determine the reasonableness of any attorney fee request. A Memorandum of Costs has not been filed.

Plaintiff did not provide a proposed Order as required by Local Rule of Court 5.17(D). Plaintiff is to prepare an Order consistent with the Court’s Ruling. The matter will be on calendar on **Monday, July 27, 2026 at 9:00 a.m. in Department 63** for status of the case. Prior to the next review hearing, the Court expects that Plaintiff will have made a decision if it wishes to move forward on the Fourth, Fifth, and Sixth Causes of Action against the Sabet Defendants.

IN RE: VAZQUEZ

CASE NUMBER: 26CV-0210173

Proposed Tentative Ruling on Petition for Change of Name: Petitioner Brenda Vazquez Valvaneda seeks to change her name to Brenda Vazquez. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. The Petition is **GRANTED**. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

9:00 a.m. – Review Hearings

ANDRADE, ET AL. VS. WELLER

CASE NUMBER: 25CV-0207894

This matter is on calendar for review regarding status of default judgment. Since the last hearing on May 11, 2026, Plaintiffs have dismissed the quiet title and declaratory relief actions as well as the Doe Defendants.

However, a default judgment has still not been obtained. The matter is continued to **Monday, August 3, 2026 at 9:00 a.m. in Department 63** for status of default judgment. If a default judgment is not on file by August 3, 2026, Plaintiffs are ordered to file a status statement no less than five court days in advance detailing when the default judgment will be obtained. **No appearance is necessary on today's calendar.**

BURROWS VS. GARRIGUS, ET AL.

CASE NUMBER: 24CV-0205757

This matter is on calendar for review regarding status of appraisal. At the last review hearing on April 20, 2026, counsel expressed difficulty with obtaining an appraisal and the Court directed counsel to continue working on it. An appraisal has not been filed. A status statement was filed in which counsel indicating continuing issues with obtaining an appraisal. The matter is continued to **Monday, September 28, 2026 at 9:00 a.m. in Department 63** for status of appraisal. If an appraisal has not been filed by that date, Plaintiffs are ordered to file a status statement no less than five court days in advance detailing the steps that have been taken to obtain the appraisal and the time estimate for obtaining the appraisal. **No appearance is necessary on today's calendar.**

CASHMAN, ET AL. VS. DEPTUCH, ET AL.

CASE NUMBER: 25CV-0207830

This matter is on calendar for trial setting. At the last hearing on April 27, 2026, the Court noted that the matter needed to be at issue by today's hearing. Despite having counsel who signed a stipulation on their behalf on January 26, 2026, a responsive pleading has still not been filed by Defendants James J. Deptuch and Amber L. Deptuch. The Court will issue an Order to Show Cause Re: Monetary Sanctions to Plaintiffs and counsel for failure to timely enter default as required by CRC 3.110. Hearing on the Order to Show Cause will be on **Monday, August 10, 2026 at 8:30 a.m. in Department 63**. The clerk is directed to issue the Order to Show Cause. The matter will also be on calendar on **Monday, August 10, 2026 at 9:00 a.m. in Department 63** for trial setting. **No appearance is necessary on today's calendar.**

CLIFTON VS. APPLEWOOD OPERATING COMPANY, LLC, ET AL.

CASE NUMBER: 25CV-0208495

This matter is on calendar for review regarding status of arbitration. Plaintiff filed a status statement informing the Court that the parties are working on discovery pre arbitration. The matter is continued to **Monday, October 19, 2026 at 9:00 am. in Department 63** for status of arbitration. The parties are ordered to file status statements no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

DISCOVER BANK VS. MARCUZ

CASE NUMBER: 24CVG-01645

This matter is on calendar for review regarding status of judgment/dismissal. The Court notes that a CCP § 664.6 Stipulation and Order were returned by the clerk on June 9, 2026 due to being filed as one document. They must be separate documents. The matter is continued to **Monday, July 27, 2026 at 9:00 a.m. in Department 63** for status of CCP § 664.6 Dismissal. Plaintiff is ordered to resubmit in proper format. The hearing will be vacated if a dismissal is on file prior to the next court date. **No appearance is necessary on today's calendar.**

DUNNE, ET AL. VS. POLARIS INDUSTRIES, INC., ET AL.

CASE NUMBER: CVPO21-0198252

This matter is on calendar for confirmation of deposit and purchase of annuity. The Order to Deposit was filed on May 7, 2026. Plaintiffs have not filed the necessary documentation. The matter is continued to **Monday, July 20, 2026 at 9:00 a.m. in Department 63** for confirmation of deposit and purchase of annuity. If both are not on file, Plaintiffs are ordered to file a status statement explaining the delay no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**